

Court No. - 39

Case :- WRIT - C No. - 3235 of 2019

Petitioner :- Ganpati Infrastructure Development Company Limited

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Amrendra Nath Singh,Ashutosh Srivastava,Baleshwar Chaturvedi,Pankaj Srivastava

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Sri Bidhan Chandra Rai, learned counsel for the petitioner, learned standing counsel for the respondent no.1, Sri Amrendra Nath Singh, learned counsel for the respondent no.2, Sri Pankaj Srivastava, learned counsel for the respondent no.3, Mohd. Pervej, learned counsel for the respondent no.4 and Sri Ashutosh Srivastava, learned counsel for the respondent no.5 are present.

Sri Ashutosh Srivastava has raised a preliminary objection that the same petitioner has filed Writ Petition No.40192 of 2018 challenging the 13th Amendment to the U.P. Electricity Supply Code, 2005 and declaring Clause 4.9 Part A and Part-B of the Code as ultra vires. That writ petition is stated to be still pending.

Copy of the writ petition has been shown to Sri Bidhan Chandran Rai, learned counsel for the petitioner, who wants 24 hours time to verify the facts.

Sri Ashutosh Srivastava submits that second writ petition seeking more or less same relief is not maintainable. Sri Ashutosh Srivastava also points out that the affidavit in the writ petition is also of the same person, namely, Ranjan Srivastava son of Late Sri Krishan Kumar Srivastava.

As prayed by the learned counsel for the petitioner, put up on 31.01.2019 in the additional cause list.

Order Date :- 29.1.2019

N Tiwari

Court No. - 5

Case :- WRIT - C No. - 3235 of 2019

Petitioner :- Ganpati Infrastructure Development Company Limited

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Amrendra Nath Singh,Ashutosh Srivastava,Baleshwar Chaturvedi,Pankaj Srivastava

Hon'ble Vikram Nath,J.

Hon'ble Virendra Kumar Srivastava,J.

Put up in the additional cause list on **05.02.2019**.

Order Date :- 31.1.2019

lakshman

[Virendra Kumar Srivastava, J.] [Vikram Nath, J.]

Chief Justice's Court

Case :- WRIT - C No. - 3235 of 2019

Petitioner :- Ganpati Infrastructure Development Company Limited

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Amrendra Nath Singh,Ashutosh Srivastava,Baleshwar Chaturvedi,Pankaj Srivastava

Hon'ble Govind Mathur,Chief Justice

Hon'ble Chandra Dhari Singh,J.

List this petition for writ on 8th February, 2019 in additional cause list.

Order Date :- 5.2.2019

Bhaskar

(Chandra Dhari Singh, J.) (Govind Mathur, C.J.)

Court No. - 21

Case :- WRIT - C No. - 3235 of 2019

Petitioner :- Ganpati Infrastructure Development Company Limited

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Amrendra Nath Singh,Ashutosh Srivastava,Baleshwar Chaturvedi,Pankaj Srivastava

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

Put up on 15.02.2019 in the additional cause list.

Order Date :- 8.2.2019

MAA/-

Court No. - 21

Case :- WRIT - C No. - 3235 of 2019

Petitioner :- Ganpati Infrastructure Development Company Limited

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Amrendra Nath Singh,Ashutosh
Srivastava,Baleshwar Chaturvedi,Pankaj Srivastava

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

Put up this case on 7.3.2019 in the additional cause list.

Order Date :- 15.2.2019

Hasnain

Court No. - 21

Case :- WRIT - C No. - 3235 of 2019

Petitioner :- Ganpati Infrastructure Development Company Limited

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Amrendra Nath Singh, Ashutosh
Srivastava, Baleshwar Chaturvedi, Pankaj Srivastava

Hon'ble Pradeep Kumar Singh Baghel, J.

Hon'ble Pankaj Bhatia, J.

Connect this case along with Writ Petition No.40192 of
2018.

List this case before the appropriate Bench on 11.4.2019 in
the additional cause list.

By that time, respondents may file counter affidavit.

Order Date :- 7.3.2019

Hasnain

Court No. - 21

Case :- WRIT - C No. - 3235 of 2019

Petitioner :- Ganpati Infrastructure Development Company Limited

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Amrendra Nath Singh,Ashutosh Srivastava,Baleshwar Chaturvedi,Pankaj Srivastava

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

For orders, order of date passed on Writ-C No. 4545 of 2019.

Order Date :- 1.4.2019

MAA/-

Court No. - 32

Case :- WRIT - C No. - 3235 of 2019

Petitioner :- Ganpati Infrastructure Development Company Limited

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Amrendra Nath Singh, Ashutosh
Srivastava, Baleshwar Chaturvedi, Pankaj Srivastava

Hon'ble Shashi Kant Gupta, J.

Hon'ble Piyush Agrawal, J.

For order, see our order of date passed in leading Writ-C No.
4545 of 2019.

Order Date :- 11.4.2019

SY

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 3235 of 2019

Ganpati Infrastructure Development Co. Ltd.Petitioner

Through :- Mr. Anshul Kumar Singhal, Advocate holding brief
of Mr. Ankur Goyal, Advocate

v/s

State of U.P. and othersRespondent

CORAM : HON'BLE RAJESH BINDAL, CHIEF JUSTICE

HON'BLE J.J. MUNIR, JUDGE

ORDER

on Civil Misc. Withdrawal Application No. 2 of 2022

1. The prayer made in this application is to dismiss the petition as withdrawn.
2. The application is allowed.
3. The petition is dismissed as withdrawn.

on Memo of Petition

The Civil Misc. Withdrawal Application No. 2 of 2022 having been allowed, the present petition stands dismissed as withdrawn.

(J.J. Munir, J.) (Rajesh Bindal, C.J.)

Allahabad
12.05.2022
Brijesh Maurya/l.Batabyal

Whether the order is speaking : Yes/No

Whether the order is reportable : Yes/No